



**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

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CRM-M-33967-2026

Date of Decision.:16.06.2026

Vinamra Lodhi

.....Petitioner

Vs.

State of Haryana

.....Respondent

CORAM:- HON'BLE MR. JUSTICE DEEPAK GUPTA

Present:- Mr. Hamid Hussain, Advocate
for the petitioner.

Mr. Abhinav Mahant, AAG, Haryana.

DEEPAK GUPTA, J. (ORAL)

By way of the present petition filed under Section 482 of the Bharatiya Nagarik Suraksha Sanhita, 2023, the petitioner seeks grant of anticipatory bail in FIR No.30 dated 05.05.2025 registered under Sections 318 (4) & 61 of the Bharatiya Nyaya Sanhita, 2023 (corresponding to Sections 420 and 120-B IPC) at Police Station Cyber Crime, Hisar.

2. Learned counsel for the petitioner contends that he has been falsely implicated in the present case. It is submitted that the petitioner is merely a student and had no knowledge regarding the alleged fraudulent activities. According to learned counsel, co-accused persons had persuaded the petitioner to become a Director of M/s Pansari Tech Infra Private Limited and he was unaware of the manner in which the affairs of the company were being conducted. It is further argued that upon coming to know of the alleged illegal activities, the petitioner himself approached the competent Court by filing a complaint under Section 175(3) BNSS. Learned counsel submits that the petitioner has no criminal antecedents, that the



case is based upon documentary evidence and that custodial interrogation is not required. Prayer has, therefore, been made for grant of anticipatory bail.

3. *Per contra*, learned State counsel opposes the petition and submits that the allegations pertain to an organised cyber fraud racket operating under the guise of share market investments. It is argued that the petitioner is admittedly one of the Directors of M/s Pansari Tech Infra Private Limited, in whose bank account amounts siphoned from victims of cyber fraud were deposited. Learned State counsel further submits that the investigation has revealed large-scale financial transactions through the said account and custodial interrogation of the petitioner is necessary to identify the beneficiaries of the fraud, trace the money trail and ascertain the involvement of other conspirators.

4. I have heard learned counsel for the parties and perused the paper-book.

5. The allegations in the FIR are that the complainant was induced through online platforms and WhatsApp groups to invest money on the assurance of substantial returns through stock market trading. Acting upon such inducement, the complainant transferred various amounts into different bank accounts and ultimately suffered a loss of ₹18,17,000/-. During investigation, it surfaced that a part of the amount was transferred to Account No.91710010105043 maintained in the name of M/s Pansari Tech Infra Private Limited. The investigation further revealed that the petitioner was one of the Directors associated with the said company.

6 At the stage of consideration of anticipatory bail, the Court is not required to record definitive findings regarding the guilt or innocence of the accused. The Court is only required to examine whether the



allegations disclose a prima facie case and whether the grant of pre-arrest bail would adversely affect the investigation. The principles governing anticipatory bail stand settled by the judgments of the Hon'ble Supreme Court in ***Gurbaksh Singh Sibbia versus State of Punjab, (1980) 2 SCC 565*** and ***Sushila Aggarwal versus State (NCT of Delhi), (2020) 5 SCC 1***.

7. The record prima facie indicates that the petitioner is not an unrelated third party. Rather, he is admittedly a Director of the company, whose bank account was allegedly utilised for receipt and routing of funds obtained through cyber fraud. Significantly, the material collected during investigation indicates that within a period of approximately forty-three days, transactions exceeding ₹1.08 crore were credited and thereafter withdrawn from the said account. Such transactions cannot be brushed aside as insignificant or routine in nature.

8. The defence projected by the petitioner that he was merely a student and had no knowledge of the functioning of the company is a matter requiring investigation and appreciation of evidence. At this stage, the said plea cannot be accepted on its face value, particularly when the petitioner admittedly held the position of Director in the company concerned. Whether he was a mere name lender or an active participant in the operations of the company is a matter that can only be effectively ascertained during investigation.

9. The complaint subsequently filed by the petitioner before the learned Magistrate also does not advance his case at this stage. Prima facie, the investigating agency has pointed out that the said complaint was instituted long after the disputed transactions had taken place and, therefore, the explanation offered by the petitioner is a matter requiring thorough investigation.

10. Cyber fraud has emerged as a serious economic offence

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affecting a large number of unsuspecting citizens. Economic offences involving digital platforms, layering of funds and movement of money through multiple bank accounts stand on a different footing from ordinary offences. The Hon'ble Supreme Court has consistently held that economic offences constitute a distinct class of offences and require a strict approach while considering requests for pre-arrest protection, particularly when the investigation is at a crucial stage.

11. The requirement of custodial interrogation in the present case cannot be ruled out. The investigating agency is required to ascertain the complete money trail, identify the ultimate beneficiaries, trace the persons operating the bank accounts and uncover the larger conspiracy behind the cyber fraud. Such investigation may not be effectively carried out if the petitioner is granted the extraordinary protection of anticipatory bail.

12. Having regard to the nature and gravity of the allegations, the magnitude of the transactions involved, the prima facie connection of the petitioner with the company account through which the funds were routed and the necessity of a thorough investigation, this Court does not find it to be a fit case for grant of anticipatory bail.

13. Consequently, the present petition is dismissed.

14. However, anything observed herein shall be construed only for the purpose of deciding the present petition and shall not be treated as an expression of opinion on the merits of the case during investigation or trial.

(DEEPAK GUPTA)
JUDGE

June 16, 2024

Neetika Tuteja

Whether Speaking/reasoned	Yes/No
Whether Reportable	Yes/No